



Superior Court of California County of San Benito

Tentative Decisions for September 3, 2026

Courtroom #1: Judge Thomas P. Breen

CU-26-00155 Ingrid G. Sywak et al vs. City of Hollister et al

The court sustains the Defendant's objections to the specific language in the Opposition as providing material outside the four corners of the Petition, nor were these items raised as a request that the court take judicial notice of them, to the extent that such information is judicially noticeable. The Court sustains the demurrer without leave to amend as to the Petition for writ of administrative mandamus (CCP§1094.5). The court overrules the demurrer to the Petition for writ of ordinary mandamus (CCP§1085.) The court sustains the demurrer to the Petition for Declaratory Relief as uncertain, with leave to amend. The Petitioner shall file an amended Petition within twenty days of the date of this order.

CU-24-00230 Brianna Avina et al vs State of California Dept of Trans, et al

The court notes that these two motions are essentially interwoven. The motion for trial preference does not actually seek any affirmative relief from the court, it is raised by the Plaintiff by their own argument as a maneuver to block the Defendant's motion for bifurcation of damages from liability at trial. Plaintiff asserts that they do not seek to advance or alter the trial date, only to confirm it. They further argue that their section 36 right to preferential

Page 1 of 4

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any objections or concerns.**